IntelliXPrime End User License Agreement (EULA)

Version 1.1 — Fiducia | AI, Inc.

1. Overview

This End User License Agreement ("Agreement") is between you (the user) and Fiducia | AI, Inc. ("Fiducia", "we", or "us") regarding your use of IntelliXPrime and related software, services, and content (collectively, the "Product").
By accessing or using IntelliXPrime, you agree to these terms.

2. License Grant

Fiducia grants you a limited, non-exclusive, non-transferable license to use IntelliXPrime for your personal or authorized business purposes.
You may not copy, distribute, modify, or resell the Product except as expressly permitted by Fiducia in writing.

3. Ownership and Intellectual Property

All rights, title, and interest in IntelliXPrime, including its software, AI models, designs, analytics, and trademarks, remain the exclusive property of Fiducia | AI, Inc.
This Agreement does not transfer ownership or any intellectual property rights to you.

4. Use Restrictions

You agree not to:
- Reverse-engineer, decompile, modify, or disassemble any part of the Product.
- Circumvent any security features or access controls.
- Use the Product for unlawful, deceptive, or infringing purposes.
- Host, sublicense, or redistribute IntelliXPrime to third parties without written authorization.

5. Data and Privacy

IntelliXPrime will process inputs, captured images, and engagement data using local AI models and services, as well as third-party data and AI services, to generate personalized responses and experiences.

The sponsoring company or brand partner that funds or operates the activation retains ownership of all engagement and activation data generated through IntelliXPrime.
Fiducia | AI processes this data on behalf of the sponsor solely for personalization, analytics, and service optimization and does not claim ownership of it.

6. Reporting and Analytics

IntelliXPrime includes AI-powered interactive analytics that measure engagement across geography, activation type, and user interaction depth.
This data helps users and partners understand performance and optimize campaigns. These analytics are anonymized and represent a first-of-its-kind innovation for fan and brand engagement intelligence.

7. Activation and Access

IntelliXPrime activations can be initiated through multiple methods designed for flexible engagement across digital and physical environments.

QR Code Activations — Users can scan QR codes displayed on merchandise, digital screens, or print media to trigger personalized experiences.

Embedded Triggers — IntelliXPrime can be embedded into mobile apps, live streams, or websites for seamless activations.

RFID Activations — IntelliXPrime supports RFID (Radio-Frequency Identification) activations that enable hands-free, automatic engagement.
- RFID tags or wristbands transmit a unique encrypted ID to initiate IntelliXPrime experiences.
- No personal data is stored on RFID tags; they only serve as a secure identifier.
- Fiducia may collect anonymous, aggregated usage data from RFID activations for analytics and performance improvement.
- Users can opt out of RFID activations where applicable.

Smart Links and Campaign Codes — IntelliXPrime may also be accessed via secure links shared across digital or marketing channels.

8. Termination

Fiducia may suspend or terminate your access if you breach this Agreement or misuse the Product.
Upon termination, your license to use IntelliXPrime ends immediately, and you must discontinue all use.

9. Warranty Disclaimer

The Product is provided “as is” and “as available.”
Fiducia makes no warranties, express or implied, regarding performance, reliability, or suitability for any purpose.
Use of AI-generated outputs or analytics is at your own discretion and risk.

10. Limitation of Liability

To the fullest extent permitted by law, Fiducia shall not be liable for any indirect, incidental, or consequential damages, including but not limited to data loss, service disruption, or reduced performance arising from the use or inability to use IntelliXPrime.

11. Support

For assistance, updates, or incident reports, contact:
support@fiduciaai.com
https://support.fiduciaai.com
Fiducia maintains 24/7 monitoring and weekday live support (Mon–Fri, 8 AM – 8 PM PST).

12. Governing Law

This Agreement is governed by the laws of the State of California, USA, excluding its conflict of law rules.

13. Contact Information

For questions about this Agreement or privacy matters, contact:
Fiducia | AI, Inc.
Email: legal@fiduciaai.com
Website: https://www.fiduciaai.com

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